

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201808172	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/04/2018 8:31 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/4/2020	Precinct: 101
Date/Time CV Reported Wed, 08/22/2018 7:10 AM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/31/2018 10:46 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Dias	04654	950320	101 PCT
2. POM Michael Wigdzinski	30021	951438	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Dias	Abuse: Police Officer Matthew Dias forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POM Michael Wigdzinski	Abuse: Police Officer Michael Wigdzinski forcibly removed § 87(2)(b) to the hospital.	B . Exonerated

Case Summary

On September 25, 2018, § 87(2)(b) made the following complaint in person at the CCRB.

On § 87(2)(b), § 87(2)(b) was released from § 87(2)(b) § 87(2)(b). When § 87(2)(b) got home, she called 911 to report a crime. At approximately 8:31 p.m., Police Officer Matthew Dias and Police Officer Michael Wigdzinski, both of the 101st Precinct, responded to § 87(2)(b)'s residence at § 87(2)(b) in Far Rockaway. They spoke with her and then called EMS. § 87(2)(b) was then taken to § 87(2)(b) (**Allegation A: Abuse of Authority: Forcible Removal to the Hospital: Exonerated, Allegation B: Abuse of Authority: Forcible Removal to the Hospital: Exonerated**). § 87(2)(b) was not arrested or summonsed and the investigation did not obtain video of the incident.

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Matthew Dias forcibly removed § 87(2)(b) to the hospital.

Allegation B: Abuse of Authority: Police Officer Michael Wigdzinski forcibly removed § 87(2)(b) to the hospital.

On September 25, 2018, § 87(2)(b) provided a sworn statement at the CCRB (**Board Review 01**). On December 12, 2018, PO Dias provided a statement at the CCRB (**Board Review 02**) and on January 16, 2019, PO Wigdzinski provided a statement at the CCRB (**Board review 03**).

In her statement, § 87(2)(b) said that at approximately 3:00 p.m. after she was released from the hospital and returned home, she called 911 to get a police report about her home being robbed. She had called 911 the day before about the same issue prior to her being hospitalized. Approximately four officers responded to her call. § 87(2)(b) asked the officers for a police report and one of the officers asked what had been stolen. She told the officers that her dishes and everything else she owned had been stolen. One of the officers said, "You've called us a bunch of times, and no one has taken anything. So now we're going to need to take you to the hospital."

§ 87(2)(b) then left her apartment with the officers and went downstairs with them where an ambulance and two EMTs were waiting outside. The EMTs asked § 87(2)(b) what medication she took and § 87(2)(b) responded that she takes § 87(2)(b). Then they asked her if she had been taking her medicine. She told them that she had and that she did not need to go to the hospital. One of the police officers told § 87(2)(b) that she had to go to the hospital because she was acting irrationally. She was then brought to § 87(2)(b) in the ambulance.

In his statement, PO Dias said he and PO Wigdzinski responded to a 911 call § 87(2)(b) made reporting someone being in front of her apartment door. As PO Dias and PO Wigdzinski arrived at the incident location, they received information over the radio, that § 87(2)(b) made another 911 call in which she said that there was a person in front of the building with a firearm. PO Dias had interacted with § 87(2)(b) before and he was aware that she had a mental health history and had been removed to the hospital before, although he had not been involved in those incidents.

They got to § 87(2)(b)'s apartment and spoke with her outside her door. She told PO Dias that someone had been trying to pick the lock of her door and pointed to a dent in the middle of the door that was not near the lock. PO Dias described § 87(2)(b) as paranoid because she was avoiding eye contact, was looking all around and over PO Dias' shoulder, and speaking rapidly.

PO Dias then asked her if there was a person out front with a firearm and § 87(2)(b) said yes and acknowledged that she made a phone call about this. § 87(2)(b) told him that she had seen the person outside, but also that she had been inside her apartment for a few hours. PO Dias noted that her apartment did not face the front of the building and none of her windows faced the street, so she could not possibly see the front of the building from her apartment. PO Dias mentioned this to § 87(2)(b) but she did not respond. She then stopped answering the officers' questions and they left the location.

At approximately 9:03 p.m., PO Dias and PO Wigdzinski responded to another 911 call made by § 87(2)(b) in which she said that her husband was in the back of her building and had discharged a firearm. When they got back to § 87(2)(b), they spoke with people that were inside the building, and no one heard a gunshot. Additionally, the 101st Precinct has "Shotspotter" which is a system that senses if, when, and where a gunshot occurred. In this incident, "Shotspotter" was not activated.

PO Dias and PO Wigdzinski then went to § 87(2)(b)'s apartment and asked § 87(2)(b) what happened and if she had heard a gunshot. She told PO Dias that she had not heard a gunshot. He asked her if she had seen her husband in the back of the apartment and she said no. PO Dias then asked § 87(2)(b) why she had made that report to 911 and § 87(2)(b) did not answer. At this point, PO Dias determined that § 87(2)(b)'s husband was not at the location and that no shots had been fired. § 87(2)(b) also mentioned to PO Dias that she had been in § 87(2)(b) the day before. PO Dias then decided to call for EMS to evaluate § 87(2)(b) because of the false claims she was making combined with the fact that she had just been released from the hospital. The EMTs spoke with § 87(2)(b) and then told PO Dias that § 87(2)(b) had to go to the hospital. The officers and EMTs walked with § 87(2)(b) to the ambulance. PO Wigdzinski rode in the ambulance with § 87(2)(b) to § 87(2)(b) and PO Dias followed in his police car.

PO Wigdzinski § 87(2)(g) added that he had interacted with § 87(2)(b) prior to this date and she was known in the precinct as someone who called 911 making false claims. PO Wigdzinski had never removed § 87(2)(b) to the hospital before.

PO Wigdzinski stated that the first 911 call made by § 87(2)(b) that he and PO Dias responded to was about someone following her with a gun. When they spoke with § 87(2)(b) she was acting paranoid and repeatedly said, "They're following me." PO Wigdzinski and PO Dias then canvassed the building for approximately fifteen minutes and were unable to find anyone that § 87(2)(b) described. The officers told § 87(2)(b) to be safe and then left.

§ 87(2)(b) made another 911 call about people that were waiting for her outside her apartment building. PO Wigdzinski and PO Dias went up to her apartment and spoke with her. They then looked around her building and could not find anyone that § 87(2)(b) described. After approximately ten minutes, they left the building.

§ 87(2)(b) then made a third 911 call in which she said her ex-husband had discharged a firearm in the back of the apartment building. PO Wigdzinski and PO Dias checked the back of the building and did not see anyone or any evidence that someone had shot a gun. PO Wigdzinski and PO Dias then went up to § 87(2)(b)'s apartment and spoke with her. § 87(2)(b) told the officers that she had not heard any gunshots and had not called 911 about a gunshot. § 87(2)(b) was walking around her apartment and talking very quickly. She was changing subjects and was not making sense.

PO Wigdzinski was alarmed by § 87(2)(b)'s behavior and he thought she fit the description of an emotionally disturbed person, so either he or PO Dias called for EMS to evaluate her. When the EMTs arrived, PO Dias explained to them that § 87(2)(b) had made a 911 call about a gunshot, but when officers arrived she said that she had not heard anything. PO Wigdzinski and PO Dias also explained that § 87(2)(b) told them she had just gotten out of § 87(2)(b). The EMTs spoke with § 87(2)(b) privately for approximately ten minutes. The EMTs then told the officers that § 87(2)(b) should go to the hospital.

The investigation obtained EVENT information from 911 calls made by § 87(2)(b). EVENT § 87(2)(b) shows that at 8:34 p.m., § 87(2)(b) called 911 requesting that police respond to her location because someone in front of the location had a gun. She did not provide a description and then stated that someone was banging on her door. At 8:36 p.m., she stated that someone in the hallway set her up and has keys to her apartment. She also said that she was just released from the hospital (**Board Review 04**). EVENT § 87(2)(b) shows that § 87(2)(b) called 911 at 8:43 p.m. and said that police just left her home. They took a report about someone harassing her, but she forgot to tell them something important that needs to be in the report and she requested that they return (**Board Review 05**). EVENT § 87(2)(b) shows that § 87(2)(b) called 911 at 9:00 p.m. stating that her son texted her phone cursing about police. She stated that her son is trying to set her up and is on his way to the location and has her keys. She stated that her son possibly had weapons and while she was in the hospital he took all of her weapons. She called two more times stating her location (**Board Review 06**). EVENT § 87(2)(b) shows that at 9:03 p.m., § 87(2)(b) called 911 and stated that her husband has keys to her apartment and was in the backyard. She stated that she heard a gunshot. She also said that her husband wanted to kill her and gave her son money to get her keys. At 9:08 p.m., police requested an ambulance come to the location for an EDP (**Board Review 07**).

The investigation obtained 911 call and police radio communication audio and prepared a summary of this audio (**Board Review 08**). At 8:31 p.m., § 87(2)(b) made a 911 call in which she stated that there was someone outside her building with a gun. She repeatedly told the operator to hurry up (**Board Review 09**). Then, at 9:02 p.m., § 87(2)(b) called 911 again and told the operator to hurry up because she heard people coming for her up the stairs. She also said that her husband was in the backyard with a gun and that she heard a gunshot. She also stated that her son had the keys to her house and that her husband was paying her son to kill her. When the operator asked what her husband was wearing, § 87(2)(b) said she did not know what her husband was wearing because she had not seen him in eight months (**Board Review 10**).

The radio communication shows that at 8:35 p.m., dispatch sent PO Dias and PO Wigdzinski to § 87(2)(b)'s address because she had reported that someone had a firearm. Approximately five minutes later, PO Dias went over the radio saying that police presence was unnecessary (**Board Review 11**). At 9:04 p.m. dispatch told PO Dias and PO Wigdzinski to respond to § 87(2)(b)'s address for a family job that involved a firearm. PO Dias went over the radio and said that additional units should not respond because, "it's a chronic location. Don't get anyone

hurt.” Approximately four minutes later, PO Dias went over the radio requesting that EMS respond to the location and 30 minutes later he went over the radio saying he was escorting EMS to § 87(2)(b) (Board Review 12).

An AIDED report prepared by PO Dias on August 04, 2018 § 87(2)(g) stated “At TPO, female caller stated to 911 operator that her ex-husband was in the rear of location and discharged a round from a firearm. Caller then stated to MOS that she never observed her husband in the rear yard and that she never heard a gunshot. Caller also made similar calls to 911 for the previous 24-hour period. Caller also made mentions that she was recently released from § 87(2)(b). EMS called to the scene and evaluated caller; caller transported to § 87(2)(b) as an EDP” (Board Review 13).

PO Dias also prepared a Domestic Incident Report which contained the same narrative as the AIDED report (Board Review 14).

The investigation obtained § 87(2)(b)'s medical records from § 87(2)(b) (Board Review 15). § 87(2)(a) PHL § 18(6)

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Patrol Guide procedure 221-13 states that a member of service can forcibly remove someone to the hospital when they reasonably believe that a person who is apparently mentally ill or emotionally disturbed must be taken into protective custody because the person is conducting himself in a manner that likely to result in serious injury to himself or others (Board Review 16).

§ 87(2)(g)

. Therefore it is recommended that **Allegation A** and **Allegation B** be *exonerated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two other CCRB complaints and has been named a victim in two allegations (**Board Review 17**).
 - § 87(2)(b)
- PO Wigdzinski has been a member of service for seven years and has been a subject in one other CCRB complaint and one allegation which was substantiated.
 - § 87(2)(g), § 87(4-b)
- PO Dias has been a member of service for seven years and has been a subject in five CCRB complaints and 12 allegations, of which one was substantiated.
 - Case 201502380 involved an allegation of property damage. The board recommended charges and the NYPD imposed no discipline.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Office, and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date